

CV-21-001167 ELIZONDO, AARON vs KCB VENTURES INC – Defendant, Tejinderpaul Chahal’s Motion for Good Faith Determination – GRANTED, unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The request for judicial notice of the Second Amended Complaint is GRANTED as to the existence and contents of the court record, but not as to the truth of disputed allegations. (Evidence Code section 452) Applying the factors stated in Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, the Court finds that the \$375,000 settlement between plaintiff Aaron Elizondo and settling parties Tejinderpaul Chahal, Harmesh Chahal, and Vicky David dba Vault 9 Nail Supply and Boutique is within the reasonable range of the settling parties' potential proportionate liability. The settlement amount is substantial in relation to the damages evidence presented, liability and comparative fault are disputed, and there is no evidence of collusion, fraud, or tortious conduct aimed at the non-settling defendants. No opposition has been filed. The settlement is therefore determined to have been made in good faith under Code of Civil Procedure sections 877 and 877.6. Pursuant to section 877.6, subdivision (c), all claims against the settling party for equitable comparative contribution or partial or comparative indemnity based on comparative negligence or comparative fault are barred.

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